CITY OF OPA-LOCKA

"The Great City"

CLERK'S ACTION SUMMARY MINUTES
REGULAR COMMISSION MEETING
WEDNESDAY, September 25, 2019
7:00 P.M.
Sherbondy Village Auditorium
215 Perviz Avenue
Opa-locka, FL 33054

1. CALL TO ORDER:

Mayor Matthew Pigatt called the meeting to order at 7:00 p.m. on Wednesday, September 25, 2019 at the Sherbondy Village Auditorium, 215 Perviz Avenue, Opa-locka, Florida.

2. ROLL CALL:

The following members of the City Commission were present: Mayor Matthew A. Pigatt, Vice Mayor Chris Davis, Commissioner Joseph L. Kelley and Commissioner Alvin Burke. Also in attendance were: Acting City Manager Newall Daughtrey, Assistant City Attorney Michelle Pamies, and City Clerk Joanna Flores. Commissioner Sherelean Bass arrived at 7:29 p.m.

3. INVOCATION:

The invocation was delivered by Commissioner Joseph L. Kelley.

4. PLEDGE OF ALLEGIANCE:

The Pledge of Allegiance was recited in unison.

5. AWARDS/PROCLAMATIONS/ACKNOWLEDGEMENTS:

6. APPROVAL OF CONSENT AGENDA AND PULL LIST (deferrals and deletions):

The following items were pulled from the Consent Agenda to be discussed separately under Action Items: pulled 13-2 (Commissioner Kelley); deferred 13-1 (Acting City Manager Daughtrey).

7. APPROVAL OF AGENDA:

It was moved by Vice Mayor Davis, seconded by Commissioner Kelley to approve the agenda, consent agenda and pull list.

There being no discussion, the motion passed by a 4-0 vote.

Commissioner Burke	Yes
Vice Mayor Davis	Yes

Commissioner Kelley	Yes
Commissioner Bass	Not Present
Mayor Pigatt	Yes

8. APPROVAL OF MINUTES:

Special Commission Meeting Minutes – August 7, 2019

It was moved by Vice Mayor Davis, seconded by Commissioner Burke to approve the minutes from the Special Commission Meeting of August 7, 2019.

There being no discussion, the motion passed by a 4-0 vote.

Commissioner Burke	Yes
Vice Mayor Davis	Yes
Commissioner Kelley	Yes
Commissioner Bass	Not Present
Mayor Pigatt	Yes

Special Commission Meeting Minutes – August 23, 2019

It was moved by Commissioner Kelley, seconded by Commissioner Burke to approve the minutes from the Special Commission Meeting of August 23, 2019.

There being no discussion, the motion passed by a 4-0 vote.

Commissioner Burke	Yes
Vice Mayor Davis	Yes
Commissioner Kelley	Yes
Commissioner Bass	Not Present
Mayor Pigatt	Yes

First Budget Hearing Minutes – September 11, 2019

It was moved by Commissioner Kelley, seconded by Commissioner Burke to approve the minutes from the First Budget Hearing of September 11, 2019.

There being no discussion, the motion passed by a 4-0 vote.

Commissioner Burke	Yes
Vice Mayor Davis	Yes
Commissioner Kelley	Yes
Commissioner Bass	Not Present
Mayor Pigatt	Yes

9. DISTRICT ONE/DISTRICT TWO - COUNTY COMMISSIONER REPORT:

Larry Gardner, Commissioner Barbara Jordan's Office, District I, announced the 13th Annual

Hispanic Heritage Festival at Country Village Park on Saturday, September 28, 2019 and invited the public to attend.

10. PUBLIC PRESENTATION:

11. CITIZENS' INPUT:

Eric Redmond, 2766 NW 131st Street, Opa-locka, FL, asked how a citizen can approach the commission when they have a problem with one of them individually without being barred from attending future meetings. He asked this because he feels he was treated unfairly at the last meeting when he called someone's name and it is not right; it was infringing upon his first amendment right and his freedom of speech. He asked if the shuttle bus can be re-routed to include the North Dade Medical Center, he goes there to treat his diabetes and had to give a resident a ride that did not have transportation. He said he knows there are many residents that are treated at the same facility. He spoke on the sex offender list and how it needs to be updated. There are many predators in the City and the residents need to know. There are ice cream trucks rolling through the streets late at night while the children are asleep and it needs to stop; something needs to be done.

Ronnika Cockrove, 2350 NW 131st Street, Opa-locka, FL, said over the past month she has been absent from the meeting because she been traveling. She has been paying attention to the budget and noticed that the numbers are not being provided to inform the residents of what's happening and that needs to change. She also asked that the meeting time be changed so the meetings are accessible to the people. Everyone is at work at 5:00 p.m. so having meetings at that time does not give taxpayers an opportunity to attend and see where their tax dollars are going. She asked that the City's website be updated to reflect what is going on in the City. She is working on a Money Bail Campaign to bring awareness to the people who are being incarcerated who live in poverty and do not have the money for bail; she asked for the support of the commission to sign her petition which asks Katherine Fernandez-Rundle to change how bail is handled for those who cannot afford it so people are not just sitting in jail.

Enyer Robles-Martinez, 80 Bahman Avenue, Opa-locka, FL, reiterated what the previous citizen said about the Money Bail Campaign and encouraged the commission to join the movement for the benefit of the City.

Alberta Wade, Eye Opener Ministry, 1245 Ali-baba Avenue, Opa-locka, FL, spoke on the ongoing issue with the drainage and flooding that is going on at the church. She said when it rains no one can come into the church because there is nowhere to park or walk. She asked that something done about it because it is stopping the parishioners from coming to church.

Lucas (inaudible), 2330 Superior Street, Opa-locka, FL, said he recently purchased the property and has been paying citations for different reasons including over grown grass and trash from the previous owners. When the lien search was done, it came back with fifteen hundred dollars ($1,500.00) in fines. They did a second lien search and that one came back with three hundred thousand dollars ($300,000.00) in fines. He has met with the City Manager and Code Enforcement, but was suggested by the Special Magistrate to go before the commission. He asked for the help of the commission to resolve the outstanding balance.

Commissioner Burke said when he ran for commissioner he wanted to make a change in the City. He encouraged everyone in the city to come to his office with any of their concerns.

Commissioner Kelley said he shares the concern with the resident about the time of the meetings, but the times are set by laws and ordinances, it is not something they just decided to do. He will look into finding the funds and changing the bus route to include the health center mentioned by the resident. He brought up the challenges the City is facing regarding the drainage and flooding around the City. Once the funding is available, that is one of the areas listed that will be addressed.

Mayor Pigatt said a report was requested from the manager which addresses the manner in which the flooding will be addressed. He said the manager's office is examining the Code Enforcement issues and will provide information to the property owner. He asked the organizers to feel free to provide the information regarding the Money Bail Campaign to the Office of the City Clerk so that the commission can receive it. All of the budget issues will be addressed once the new manager comes to the City and they will make sure things are taken care of. He asked the manager to provide information on what was addressed in citizen's forum.

Acting City Manager Daughtrey said the Code Enforcement issue was brought to his attention and he asked staff to write it up so it can be presented to the commission to make a decision. Additional funds will be needed to address the flooding situation. Currently Public Works is pumping out the area when it rains. It is one of about twenty areas where this happens.

12. ACTION ITEMS:

1 (13-2). A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, APPROVING THE EMPLOYMENT AGREEMENT (EXHIBIT "A") BETWEEN THE CITY OF OPA-LOCKA AND JOHN E. PATE AND DIRECTING THE APPROPRIATE CITY OFFICIALS TO EXECUTE THE EMPLOYMENT AGREEMENT; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by City Commission*

The above resolution was read by Attorney Pamies.

It was moved by Commissioner Kelley, seconded by Commissioner Burke for discussion.

Commissioner Kelley said he will not go into detail about the agreement because he already stated his opinion in the last meeting; he is ready to vote.

There being no further discussion, the motion on the resolution passed by a 3-1 vote.

Commissioner Burke	Yes
Vice Mayor Davis	Yes
Commissioner Kelley	No
Commissioner Bass	Not Present
Mayor Pigatt	Yes

13. CONSENT AGENDA:

1 (13-1). A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, APPROVING THE COMPLETED 2016-2017 AUDITED FINANCIAL STATEMENT THAT WAS PREVIOUSLY PRESENTED TO THE COMMISSION; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by City Manager*

This item was deferred by the sponsor.

15. PLANNING & ZONING:

A. PUBLIC HEARINGS:

B. APPEALS:

16. ORDINANCES/RESOLUTIONS/PUBLIC HEARING:

A. FIRST READING ORDINANCE(S):

B. SECOND READING ORDINANCE(S)/PUBLIC HEARING:

C. RESOLUTIONS/PUBLIC HEARINGS:

17. CITY MANAGER'S REPORT:

18. OFFICIAL BOARD REPORTS:

19. MAYOR/COMMISSION REPORT:

Commissioner Burke said there is a situation on Ali-baba Avenue near the Amazon building. The traffic is congested because of how the road and the lights were created since Amazon has been open; something needs to be done.

Commissioner Kelley reiterated what Commissioner Burke said. He said they may need to go back and meet with the county and see if the intersection can be changed. He asked the manager for a written report on the status of the senior's bus. He asked for mulch to be placed around the main thoroughfares in the City for beautification. He also asked for the status on the audit since the item was deferred.

Vice Mayor Davis congratulated the Police department for catching the killers from the last incident at Glorietta Apartments. He looks forward to working with the complexes to lower the crime in those areas.

Mayor Pigatt asked for an update on the finances in the City.

Trimerge Consultant Gerri Lazarre said a workshop was held last Friday with the auditor and it went well. The auditor will be providing an opinion, not a disclaimer. What is pending is the legal letter from previous City Attorney Vincent Brown or current City Attorney Norris-Weeks. She contacted Mr. Brown and he sent a letter this morning. She spoke to the auditor today and

was told he was making a quality control assessment since he just received the letter. A report will be finalized on Friday at noon and everything else is going according to plan.

Commissioner Kelley said that needs to be on the fast track so that funds can become available to take care of things that are outstanding. He mentioned the re-entry fair that was held earlier in the day and it was a success. He thanked all of the staff that was involved with assisting the event. The feeding program was not held because the rucks are assisting with the Bahamas disaster; it will resume next month. The Hispanic Heritage festival will be held next month along with the Mock Commission Meeting with the youth from the elementary schools.

Mayor Pigatt asked the manager for a report on the flooding emergency that was declared in the City.

Public Works Director Airia Austin said documents have been completed and are ready for bid.

Mayor Pigatt said a written report needs to be provided that informs the residents on the status of where the City is with dealing with the flooding issues along with a timeframe for completion. Mr. Austin said a document will come before the commission after the budget has been passed.

20. OFFICIAL BOARD APPOINTMENTS:

21. ADJOURNMENT:

There being no further business to come before the commission, it was moved by Commissioner Kelley, seconded by Vice Mayor Davis to adjourn the meeting at 7:50 p.m.

MAYOR

ATTEST:

CITY CLERK

